

Approved as to
form only:

Date: 8/6/19

GRANT OF ACCESS EASEMENT

KNOW ALL MEN BY THESE PRESENTS that, for and in consideration of the sum of One Dollar (\$1.00) and other valuable considerations in hand paid, the receipt and adequacy of which is hereby acknowledged, the **CITY OF CHEYENNE**, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as GRANTOR, does hereby grant, remise and relinquish unto **JOSEPH M. DYSON**, Trustee of the Dyson Family Trust dated October 29, 1979, and to his successors in trust, 853 Tamalpais Avenue, Apartment C211, Novato, California 94947, hereinafter referred to as GRANTEE, the non-exclusive right, privilege, authority and easement for use and maintenance of an access road across lands owned by GRANTOR, or in which GRANTOR has any interest, further described as follows:

LEGAL DESCRIPTION

A 60 foot wide access easement on an existing gravel road, being in the NE1/4NE1/4 of Section 23, Township 13 North, Range 68 West, of the 6th P.M., in Laramie County, Wyoming, being 30 feet either side of the following described centerline: Beginning at the Northeast corner of said Section 23, thence S. 89°45'44" W., along the Northerly line of said Section 23 a distance of 308.56 feet to the true point of beginning for this easement;
Thence S. 48°01'07" W., a distance of 411.37 feet to a point;
Thence S. 38°58'47" W., a distance of 66.45 feet to a point on the Northerly right of way line of Wyoming State Highway No.225 (Otto Road);
Said parcel containing 0.66 acre more or less.
SEE EXHIBIT "A" ACCOMPANYING.

GRANTOR further covenants that it shall, in no way, hinder or prevent the proper and reasonable use and enjoyment of said property for access by GRANTEE, its successors, assigns, lessees, invitees and agents.

The rights granted herein shall forever be subject to the rights of GRANTOR, its assigns or lessees to explore for, develop, and extract any and all minerals or other subsurface resources beneath this easement.

Upon abandonment or discontinuance of use of this easement for the purposes specified above, all of GRANTEE'S rights under this grant of easement shall revert to GRANTOR or its assigns, the same as if this grant had never been made. Should this easement be abandoned by the GRANTEE, or GRANTEE'S successors or assigns, the above described tract of land shall be returned to a condition satisfactory to the landowner.

The easement may be transferred; however, no transfer may increase the burden on the servient estate in any manner.

Any transfer of ownership of this easement, or any change of name or mailing address of the owner of this easement, shall be reported to the GRANTOR within thirty (30) days of the transfer or change.

The GRANTEE releases and agrees to save and hold harmless GRANTOR, its officers, agents and employees, from any causes of action or claims or demands arising out of this grant of easement, except to the extent any such cause of action or claims or demands are the result of the negligence or willful misconduct of the GRANTOR, its agents, or employees.

GRANTOR shall have the right to use and enjoy the above described premises, subject to the rights herein granted.

This grant is a covenant running with the land and shall be binding upon the parties hereto, their heirs, devisees, representatives, successors and assigns; and the rights, privileges and authorities herein granted shall be assignable together or separately and in whole or in part.

The easement herein contained shall be binding upon the GRANTOR, its heirs, successors and assigns.

DATED this _____ day of _____, 2019.

FOR GRANTOR:

Marian J. Orr, Mayor

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

This instrument was acknowledged before me, the undersigned officer, on this _____ day of _____, 2019, by Marian J. Orr, Mayor of the City of Cheyenne, Wyoming, and Kristina F. Jones, City Clerk for the City of Cheyenne, Wyoming.

Witness my hand and official seal.

(SEAL)

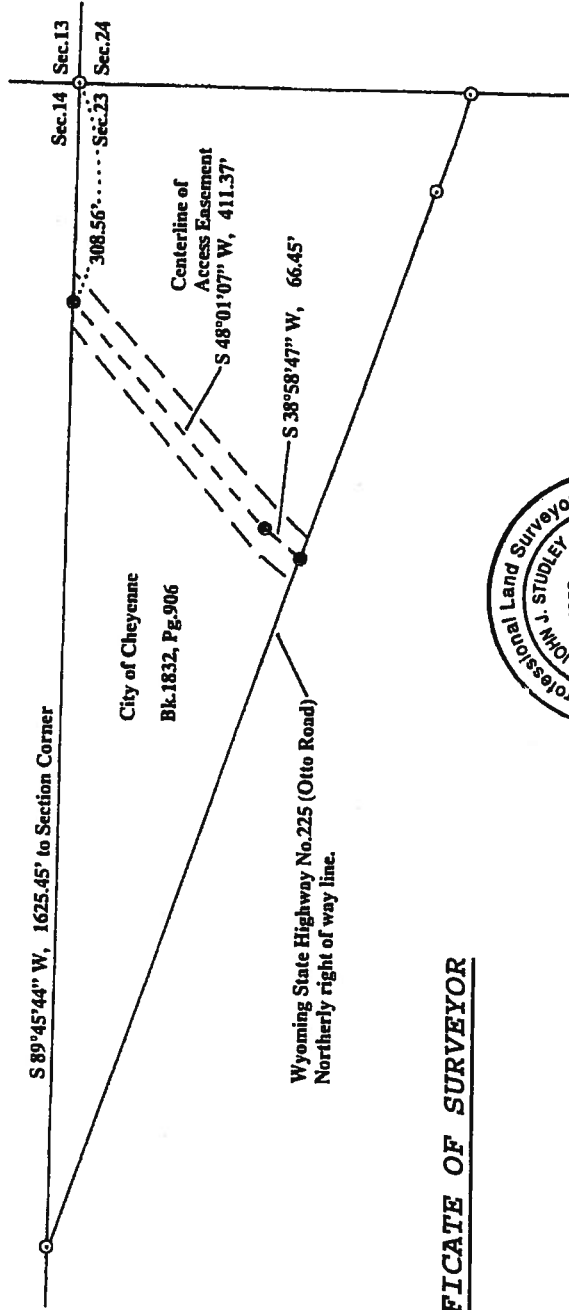
Notary Public

My commission expires: _____

EXHIBIT "A"



SCALE 1" = 200'



LEGEND

- FOUND SURVEY MONUMENTS OF RECORD.
- ANGLE POINTS OF EASEMENT.



CERTIFICATE OF SURVEYOR

STATE OF WYOMING)
COUNTY OF LARAMIE) SS

I, John J. Studley, Wyoming Licensed Professional Land Surveyor No. 4828, employee/agent for The City of Cheyenne, do hereby certify the PUBLIC ACCESS EASEMENT shown hereon was prepared by me from surrounding plats and documents of record, and an actual survey conducted by me, and is correct to the best of my knowledge and belief.